



CHAPTER v.

An Act to confirm the construction of certain works by the Bristol Waterworks Company to provide for the consolidation and conversion of the capital and loan capital of the Company and for other purposes. [16th June 1926.] A.D. 1926.

WHEREAS the Bristol Waterworks Company (hereinafter called "the Company") were incorporated by the Bristol Waterworks Act 1846 and their powers were extended by two subsequent Acts in the years 1850 and 1853 respectively :

And whereas the said three Acts were repealed by the Bristol Waterworks Act 1862 but the Company were by that Act continued incorporated by the same name and further powers were conferred upon the Company by the Bristol Waterworks Acts and Order 1862 to 1921 :

And whereas it is expedient that the acquisition of certain lands and the construction of certain works by the Company as mentioned in this Act should be confirmed :

And whereas the following is a statement of the capital and loan capital which the Company have issued

A.D. 1926. and borrowed or are authorised to issue and borrow under the powers in that behalf contained in the before-mentioned Acts and Order :—

CAPITAL.

Year of Act of Parliament or Order authorising capital.	Amount authorised.	Description of shares or stock.	Dividend.	Amount issued.	Premiums.	Remain- ing to be issued.
1846	£ 200,000	Ordinary stock	10 % maximum	£ 200,000	—	Nil
1850	100,000	Preference stock	5 % minimum	100,000	—	Nil
			10 % maximum		—	Nil
1853	4,000	Ordinary stock	10 % maximum	4,000	—	Nil
1862	80,000	Preference shares (£20 each)	4½ %	80,000	—	Nil
	20,000	Ordinary stock	10 % maximum	20,000	—	Nil
1865	80,000	Preference shares (£20 each)	4½ %	80,000	—	Nil
	20,000	Ordinary stock	10 % maximum	20,000	—	Nil
1872	160,000	Ordinary stock	10 % maximum	160,000	—	Nil
	40,000	Ordinary stock	10 % maximum	40,000	—	Nil
1882	320,000	Preference shares (£10 each)	5 %	320,000	—	Nil
1888	240,000	Consolidated ordinary stock	7 % maximum	599,600	£ 285,401 s. 19 d. 0	Nil
1889	100,000	Consolidated ordinary stock	7 % maximum			
1895	350,000	Consolidated ordinary stock	7 % maximum			
1902	280,000	Consolidated ordinary stock	7 % maximum	83,640	1,358 1 0	Nil
1902 and 1920 (Order)	—	Preference stock	5 %			
1914	100,000	Preference stock	4½ %	98,905	1,095 0 0	Nil
1917	300,000	Preference stock	6 %	296,337	3,663 0 0	Nil

LOAN CAPITAL.

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Year of Act of Parliament authorising Loan Capital.	Description of loan.	Rate of interest per cent. on moneys already borrowed.	Total borrowed.	Remain- ing to be bor- rowed.	Total autho- rised.
			£	£	£
1846	Debenture stock.	4 %	59,495	Nil	66,000
1853	Debenture stock.	4 %	36,505	Nil	30,000
1882	Debenture stock.	3½ %	80,000	Nil	80,000
1888	Debenture stock.	3½ %	140,000	Nil	140,000
1889	Debenture stock.	3½ %	25,000	Nil	25,000
1895	Debenture stock.	3½ %	87,500	Nil	87,500
1902	Debenture stock.	3½ %	48,750	21,250	70,000
1914	Debenture stock.	3½ %	25,000	Nil	25,000
1917		—	—	100,000	100,000
1921		—	—	517,500	517,500

And whereas the holders of the one hundred thousand pounds preference stock authorised by the Bristol Waterworks Act 1850 and carrying a minimum dividend of five pounds per centum per annum are entitled under the provisions of section 12 of the Bristol Waterworks Act 1865 to an additional dividend up to a rate of five pounds per centum per annum out of the revenue of the Company so far as any such revenue remains after meeting various purposes mentioned in the said section including the payment of dividend at the rate of ten pounds per centum per annum on the ordinary stock of the Company and paying such further dividend as may be necessary to make up the deficiency of any previous dividend on such ordinary stock which shall have fallen short of ten per centum per annum and the dividends on such one hundred thousand pounds preference stock by virtue of the said section and of section 12 of the Bristol Waterworks Act 1872 rank in priority next after the interest on the debenture stock of the Company authorised by the Bristol Waterworks Act 1846 :

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And whereas it is expedient that the existing ordinary and preference capital and debenture capital of the Company should be consolidated and converted as provided by this Act :

And whereas it is expedient that such other provisions should be made as are in this Act hereinafter contained :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1. This Act may be cited as the Bristol Waterworks Act 1926 and the Bristol Waterworks Acts and Order 1862 to 1921 and this Act may be cited together as the Bristol Waterworks Acts and Order 1862 to 1926.

Incorpora-
tion of parts
of Acts.

2. There are hereby incorporated with this Act :—

The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The transfer or transmission of shares ;

The remedies of creditors of the company against the shareholders ;

The borrowing of money by the company on mortgage or bond ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and the said provisions shall so far as the same are respectively applicable apply to any consolidated ordinary and preference stock to be issued under the powers of this Act ;

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) (except the provisions thereof which limit the

rate of dividend on preference capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts; A.D. 1926.
—

The Waterworks Clauses Acts 1847 and 1863 (except the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847).

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And Interpretation.

“the Company” means the Bristol Waterworks Company;

“the undertaking” means the undertaking for the time being of the Company;

“the date of conversion” means the first day of January one thousand nine hundred and twenty-seven;

“the directors” means the directors of the Company.

4. The construction by the Company of the existing works next hereinafter described is hereby sanctioned and confirmed and the Company may maintain and from time to time alter improve enlarge extend renew reconstruct or discontinue all or any of the same and may retain hold and use for the purposes of the undertaking all or any of the lands or any interest in the lands in this section described which have been already acquired by the Company for the purposes of or in connection with the said works and the said works and lands shall for all purposes form part of and be comprised in the undertaking. Confirming construction of works and acquisition of lands.

The existing works and lands hereinbefore referred to are situate in the parish of Dundry in the rural district of Long Ashton in the county of Somerset and are as follows :—

Work No. 1 A service reservoir in an enclosure one acre or thereabouts in extent belonging or

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reputed to belong to the Company and forming part of the land numbered 31 on the $\frac{1}{2500}$ Ordnance map of the said parish (Edition 1917 Somersetshire Sheet VI. 13);

Work No. 2 A line of pipes (No. 1) commencing in the said service reservoir (Work No. 1) and terminating by a junction with the line of pipes (Work No. 3) next hereinafter described at the point of junction of Highridge Road with the approach road to the said reservoir;

Work No. 3 A line of pipes (No. 2) commencing by a junction with the line of pipes (Work No. 2) at its termination hereinbefore described and terminating at the point where Highridge Road crosses the boundary between the parishes of Dundry and Bishopsworth.

Power to
Company to
lay mains in
parish of
Dundry.

5. The Company may within the parish of Dundry exercise all the powers conferred on them by the Waterworks Clauses Act 1847 with reference to the breaking up of streets for the purpose of laying mains as if that parish were included within the limits of the Company for the supply of water but nothing in this section shall authorise the Company to supply water in any part of the said parish.

Conversion
of ordinary
capital.

6.—(1) On the date of conversion the four hundred and forty-four thousand pounds existing ordinary stock of the Company bearing a maximum dividend at the rate of ten pounds per centum per annum and the five hundred and ninety-nine thousand six hundred pounds existing ordinary stock of the Company bearing a maximum dividend at the rate of seven pounds per centum per annum shall be converted and consolidated into one class of consolidated ordinary stock according to the following scale (that is to say):—

For every one hundred pounds of such existing ordinary stock bearing a maximum dividend at the rate of ten pounds per centum per annum one hundred and forty-two pounds and six-sevenths of a pound of consolidated ordinary stock;

For every one hundred pounds of such existing ordinary stock bearing a maximum dividend

at the rate of seven pounds per centum per annum one hundred pounds of consolidated ordinary stock; A.D. 1926.
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and so in proportion for every fraction of one hundred pounds of such existing ordinary stock.

(2) On the date of conversion there shall be created by virtue of this Act such nominal amount of consolidated ordinary stock as shall be necessary for the purpose of carrying into effect the conversion provided for by this section.

(3) The Company shall not in any year pay out of their profits any larger dividend on such consolidated ordinary stock than a dividend at the rate of seven pounds per centum per annum in respect of every one hundred pounds of such stock unless a larger dividend be at any time necessary to make up a deficiency of any previous dividend on such stock which shall have fallen short of such rate as aforesaid.

7.—(1) On the date of conversion the eight thousand preference shares of twenty pounds each of the Company bearing dividend at the rate of four pounds and ten shillings per centum per annum the thirty-two thousand preference shares of ten pounds each of the Company bearing dividend at the rate of five pounds per centum per annum the ninety-eight thousand nine hundred and five pounds existing preference stock of the Company bearing dividend at the rate of four pounds and ten shillings per centum per annum the eighty-three thousand six hundred and forty pounds existing preference stock of the Company bearing dividend at the rate of five pounds per centum per annum and the two hundred and ninety-six thousand three hundred and thirty-seven pounds existing preference stock of the Company bearing dividend at the rate of six pounds per centum per annum shall be converted and consolidated into one class of consolidated preference stock bearing a fixed preference dividend at the rate of five pounds per centum per annum according to the following scale (that is to say):—

Conversion of preference capital.

For each such preference share of twenty pounds bearing dividend at the rate of four pounds and ten shillings per centum per annum eighteen pounds of consolidated preference stock;

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For each such preference share of ten pounds bearing dividend at the rate of five pounds per centum per annum ten pounds of consolidated preference stock;

For every one hundred pounds of such existing preference stock bearing dividend at the rate of four pounds and ten shillings per centum per annum ninety pounds of consolidated preference stock;

For every one hundred pounds of such existing preference stock bearing dividend at the rate of five pounds per centum per annum one hundred pounds of consolidated preference stock;

For every one hundred pounds of such existing preference stock bearing dividend at the rate of six pounds per centum per annum one hundred and twenty pounds of consolidated preference stock;

and so in proportion for every fraction of one hundred pounds of such existing shares or stock.

(2) On the date of conversion there shall be created by virtue of this Act such nominal amount of consolidated preference stock as shall be necessary for the purpose of carrying into effect the conversion provided for by this section.

Conversion
of debenture
stock and certain
preference
stock.

8.—(1) On the date of conversion the one hundred thousand pounds of preference stock of the Company carrying a minimum dividend at the rate of five pounds per centum per annum the ninety-six thousand pounds debenture stock of the Company carrying interest at the rate of four pounds per centum per annum and the four hundred and six thousand two hundred and fifty pounds debenture stock of the Company carrying interest at the rate of three pounds and ten shillings per centum per annum shall be converted and consolidated into one class of consolidated debenture stock bearing interest at the rate of four pounds per centum per annum according to the following scale (that is to say):—

For every one hundred pounds of such existing preference stock bearing a minimum dividend

at the rate of five pounds per centum per annum one hundred and twenty-five pounds of consolidated debenture stock ;

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For every one hundred pounds of such existing debenture stock bearing interest at the rate of four pounds per centum per annum one hundred pounds of consolidated debenture stock ;

For every one hundred pounds of such existing debenture stock bearing interest at the rate of three pounds and ten shillings per centum per annum eighty-seven pounds and ten shillings of consolidated debenture stock ;

and so in proportion for every fraction of one hundred pounds of such existing preference or debenture stock.

(2) On the date of conversion there shall be created by virtue of this Act such nominal amount of consolidated debenture stock as shall be necessary for the purpose of carrying into effect the conversion provided for by this section.

9. In every case where under the foregoing provisions of this Act a holder of existing capital or debenture stock of the Company would be entitled to be registered as the holder of any fractional part of one pound of consolidated ordinary stock consolidated preference stock or consolidated debenture stock the Company in lieu of registering such holder and issuing to him a certificate as holder of any fractional part of one pound of such stock shall pay to such holder in cash the then market value of such fractional part and shall register such holder and issue to him a certificate of the amount of consolidated ordinary stock consolidated preference stock or consolidated debenture stock to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder or in the case of joint holders of that one of them whose name stands first in the register for the sum so paid in cash as aforesaid shall be a sufficient discharge to the Company in respect of such fractional part. The Company may either cancel all or any stock in lieu of which cash is so paid or issue the same to any willing purchaser thereof in amounts of not less than one pound and any loss or expense which may be incurred in connection with such issue shall be borne by the Company.

As to fractional parts of stock.

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Allocation
of original
capital.

10. All consolidated ordinary stock consolidated preference stock and consolidated debenture stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and all such stock shall subject to the provisions of this Act be held in and with the same rights (including rights in respect of deficiencies in past dividends) on the same trusts and be subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities as immediately before the date of conversion affected or attached to the existing capital or debenture stock of the Company in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting any such existing capital or debenture stock and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock so created and substituted for such existing capital or debenture stock and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any such existing capital or debenture stock of the Company are hereby expressly authorised and required to accept any consolidated ordinary consolidated preference or consolidated debenture stock allotted to and vested in them pursuant to the provisions of this Act and any sum paid to them in cash under the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the existing capital or debenture stock for which such stock created by this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act:

Provided always that there shall not be paid to any holder of any consolidated ordinary stock in respect of any such deficiencies in past dividends which shall have arisen before the date of conversion any sum or sums which shall exceed in the aggregate the total amount which having regard to section 34 of the Bristol Waterworks Act 1921 might have been paid in respect of such deficiencies to the holder of the existing ordinary stock for which such consolidated ordinary stock is substituted.

11. The powers of the Company under the Bristol Waterworks Acts and Order 1862 to 1921 so far as such powers relate to the balance amounting to six hundred and thirty-eight thousand seven hundred and fifty pounds which the Company have not raised of the moneys which they are by those Acts and that Order authorised to raise by borrowing on mortgage or by the creation and issue of debenture stock may be exercised by borrowing on mortgage or by the creation and issue of consolidated debenture stock but not otherwise and any consolidated debenture stock so issued and the interest thereon shall rank *pari passu* in all respects with the consolidated debenture stock created by this Act and the interest thereon.

A.D. 1926.

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As to un-
issued
borrowing
powers.

12. The Company shall call in and cancel the certificates of the existing capital and debenture stock of the Company for which stock created by this Act is substituted as aforesaid and issue in lieu thereof certificates of the stock to which the holders of such existing capital or debenture stock are by this Act respectively entitled but no holder of any such existing capital or debenture stock shall be entitled to any such certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the certificate of proprietorship of such existing capital or debenture stock or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof but if any holder of any such existing capital or debenture stock of the Company neglect or omit to send or deliver to the Company his certificate or certificates thereof for the period of one year after notice in writing sent by post to the address of such holder appearing in the stockholders or debenture holders address book of the Company the Company may retain any dividend or interest declared or payable upon or in respect of the stock substituted under the provisions of this Act for the existing capital or debenture stock so held by him until such certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and an indemnity is given against any claim in respect of such lost or destroyed certificate or certificates to the satisfaction of the directors.

Exchange of
certificates.

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Certain provisions of this Act to be taken into account in revision of charges.

13. In any revision of charges under section 27 (Revision of rates) of the Bristol Waterworks Act 1921 due regard shall be had to the provisions of the sections of this Act of which the marginal notes are respectively "Conversion of ordinary capital" "Conversion of preference capital" and "Conversion of debenture stock and certain preference stock."

Amending Act of 1921.

14. The provisions of section 21 of the Bristol Waterworks Act 1921 (Rates for supply for domestic purposes) instead of applying only to private dwelling-houses or parts of private dwelling-houses shall apply to all dwelling-houses or parts of dwelling-houses other than those specified in the section of this Act of which the marginal note is "Supply to houses partly used for trade &c." and accordingly—

(1) Section 21 of the Bristol Waterworks Act 1921 shall have effect as though the word "private" were omitted therefrom wherever that word occurs; and

(2) Sections 23 and 24 of that Act (relating to the supply of water to dwelling-houses not only used as such and dwelling-houses partly used for trade) are hereby repealed.

As to areas added to city of Bristol.

15. If by any Act passed in the present session of Parliament the boundaries of the city of Bristol shall be extended so as to include any areas within the limits of supply of the Company the areas so included for the purposes of the Bristol Waterworks Act 1921 shall be deemed to have been comprised within the said city at the date of the passing of such last mentioned Act.

Supply to houses partly used for trade &c.

16.—(1) The Company shall not be bound to supply with water otherwise than by measure :—

(a) Any building used as a dwelling-house whereof any part is used for any trade or manufacturing purpose for which water is required; or

(b) Any workhouse hospital (whether public or private) asylum (whether public or private) sanatorium school or similar institution club hotel public-house restaurant or inn; or

(c) Any boarding-house or public institution habitually occupied by at least twelve persons;

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but shall if so required by the owner or occupier of any such premises as aforesaid furnish a supply of water by measure in accordance with the provisions of this section.

(2) Where a supply of water to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the rate for the time being payable for water supplied for domestic purposes.

(3) The amount to be paid under the provisions of this section exclusive of meter rent shall not in any one quarter be less than the sum which would have been payable in respect of such premises had the supply thereto been furnished at the rate for the time being payable for water supplied for domestic purposes :

Provided that any water supplied in excess of the quantity which such quarterly payment calculated at the rate of three shillings for every one thousand gallons would cover shall be paid for at the reduced rate of two shillings and threepence for every one thousand gallons.

(4) For the purposes of section 27 of the Bristol Waterworks Act 1921 the rates or charges prescribed by this section shall be deemed to have been authorised by that Act and the said section 27 shall apply and have effect accordingly.

(5) Nothing in this section shall derogate from or affect any rights of the lord mayor aldermen and burgesses of the city of Bristol or the guardians of the poor of the parish of Bristol under section 12 (For protection of corporation of Bristol &c.) of the Bristol Waterworks Act 1914.

17. Notwithstanding anything in the Companies
Clauses Consolidation Act 1845 no person shall be dis-
qualified from being a director of the Company by reason
of his holding any office or place of trust or profit under
the Company or by reason of his being interested in any
contract with the Company nor shall any director be
required to cease from voting or acting as a director by
reason of his accepting any such office or place of trust

Contracts
by directors.

A.D. 1926. or profit or becoming interested in any such contract
— Provided that in the case of his being or becoming
interested in any contract with the Company whether
such interest shall arise before or after his appointment
as a director the nature of his interest in the contract
shall be disclosed by him at the meeting of the directors
at which the contract is determined on if his interest
then exists or in any other case at the first meeting of
the directors after the acquisition of his interest or
after his appointment and that no director shall as a
director vote in respect of any such contract and if he
does so vote his vote shall not be counted but this pro-
hibition shall not apply to any contract by or on behalf
of the Company to give to the directors or any of them
any security by way of indemnity.

Substitution
of card
index for
shareholders
address
book.

18. Notwithstanding anything contained in section
10 of the Companies Clauses Consolidation Act 1845
as from time to time applied to the Company the Com-
pany may substitute for the shareholders address book
provided under that section a card or other index (of a
type to be approved by the auditors of the Company)
containing the names and addresses of the several stock-
holders of the Company and that section in its applica-
tion to the Company shall be read and have effect
accordingly.

Costs of
Act.

19. All costs charges and expenses of and incident
to the preparing for obtaining and passing of this Act
or otherwise in relation thereto shall be paid by the
Company and may in whole or in part be paid out of
revenue.

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